

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2211
(Senators Bekkedahl, Larson, Hogue)
(Representatives Ista, Schneider, Klemin)

AN ACT to amend and reenact sections 27-02.2-01, 27-02.2-02, 27-02.2-03, 27-02.2-04, 27-02.2-05, 27-02.2-06, 27-02.2-09, 27-02.2-10, and 27-02.2-11 of the North Dakota Century Code, relating to the attorney recruitment and retention program.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 27-02.2-01 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-01. Attorney recruitment and retention program - Participation - Assessment.

1. The supreme court may establish a program to assist rural counties and municipalities in recruiting and retaining attorneys.
2. A county or municipality interested in participating in the program shall apply to the supreme court. After determining eligibility, the supreme court shall conduct an assessment of the applicant to evaluate the applicant's need for an attorney and the ability of the applicant to sustain and support an attorney.
3. In making the selection of an eligible applicant, the supreme court shall consider the assessment and:
 - a. The demographic of the county or municipality;
 - b. The age and number of the members of the county or local bar association;
 - c. The recommendation of the presiding district court judge;
 - d. The economic development programs within the county or municipality;
 - e. The geographical location of the county or municipality in comparison to other counties or municipalities participating in the program; and
 - f. Any prior participation in the program by the county or municipality.
4. The supreme court shall maintain a list of counties and municipalities that have been assessed and are selected for participation in the recruitment and retention assistance program.
5. The supreme court may revise the assessment of any county or municipality or conduct a new assessment as necessary to reflect a change in conditions.

SECTION 2. AMENDMENT. Section 27-02.2-02 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-02. County eligibility.

A county is eligible to participate in the recruitment and retention assistance program if the county:

1. ~~Has a population of sixteen thousand five or fewer~~ licensed attorneys residing in the county;

2. Agrees to provide the county's portion of the incentive payment as required under section 27-02.2-06; and
3. Is determined to be eligible by the supreme court.

SECTION 3. AMENDMENT. Section 27-02.2-03 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-03. Municipality eligibility.

A municipality is eligible to participate in the recruitment and retention assistance program if the municipality:

1. Has a population of five thousand or fewer;
2. Agrees to provide the municipality's portion of the incentive payment as required under section 27-02.2-06; and
3. Is determined to be eligible by the supreme court.

SECTION 4. AMENDMENT. Section 27-02.2-04 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-04. Attorney eligibility.

An attorney licensed to practice in the state who meets all requirements set by the supreme court may participate in the recruitment and retention assistance program. An attorney participating in the program shall practice in a supreme court-selected county or municipality for at least five consecutive years. No more than eight attorneys may participate in the program at any given time.

SECTION 5. AMENDMENT. Section 27-02.2-05 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-05. Incentive payment to participating attorneys.

An attorney selected by the supreme court to participate in the recruitment and retention assistance program is entitled to receive an incentive payment of forty-five thousand dollars to be paid in five equal annual installments.

SECTION 6. AMENDMENT. Section 27-02.2-06 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-06. Agreement for payment of recruitment and retention assistance - Repayment.

1. An agreement for the payment of recruitment and retention assistance under this chapter must require the county or municipality served by the attorney to provide thirty-five percent of the total amount of the incentive payment in five equal installments.
2. The state bar association of North Dakota, the North Dakota bar foundation, or any other legal association in North Dakota shall pay fifteen percent of the annual installment to the supreme court.
3. After the county or municipality certifies to the supreme court that the county or municipality has paid the attorney the annual amount and the state bar association of North Dakota, the North Dakota bar foundation, or any other legal association in North Dakota has paid its installment to the supreme court, the supreme court shall pay the attorney the remaining balance of the annual installment.
4. Subject to appropriation by the legislative assembly, the supreme court shall pay the required amount of funds pursuant to this chapter and the funds received from the state bar association

of North Dakota, the North Dakota bar foundation, or any other legal association in North Dakota, as required under this chapter, to an attorney participating in the program.

5. If an attorney breaches the agreement, the attorney shall repay all funds received under this chapter and under the terms and conditions set by the supreme court. Failure to repay the funds is grounds for discipline by the supreme court.

SECTION 7. AMENDMENT. Section 27-02.2-09 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-09. Attorney recruitment and retention assistance program fund - Continuing appropriation.

The attorney recruitment and retention assistance program fund is established in the state treasury. Payments collected under section 27-02.2-08 must be deposited in the attorney recruitment and retention assistance program fund. The funds deposited in the attorney recruitment and retention assistance program fund are appropriated to the judicial branch on a continuing basis for the purpose of making attorney payments under the recruitment and retention assistance program.

SECTION 8. AMENDMENT. Section 27-02.2-10 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-10. Filing and approval of recruitment and retention assistance agreement.

A recruitment and retention assistance agreement entered under this chapter becomes effective when the agreement is filed with and approved by the supreme court. The agreement must require the attorney to practice law full-time in the eligible county or municipality for at least five consecutive years.

SECTION 9. AMENDMENT. Section 27-02.2-11 of the North Dakota Century Code is amended and reenacted as follows:

27-02.2-11. Ineligibility for participation in other program.

If an individual has previously participated in an attorney recruitment and retention program under this chapter, or any other state or federal scholarship, loan repayment, or tuition reimbursement program requiring the individual to provide attorney services within an underserved area, the individual may not participate in another attorney recruitment and retention program under this chapter.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2211.

Senate Vote: Yeas 45 Nays 2 Absent 0

House Vote: Yeas 73 Nays 17 Absent 4

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State